

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Daniel Cooper	Team: Squad #07	CCRB Case #: 201602483	☐ Force ☐ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Thursday, 02/25/2016 6:00 PM	Location of Incident: Prospect Avenue station on the R Train platform	18 Mo. SOL 8/25/2017	Precinct: 72
Date/Time CV Reported Thu, 03/24/2016 1:28 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Thu, 03/24/2016 1:28 PM

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Emil Israil	06409	936799	TB DT32
2. SGT Alfredo Ruiz	05534	907224	TB DT32

Officer(s)	Allegation	Investigator Recommendation
A . POM Emil Israil	Abuse: PO Emil Israil frisked § 87(2)(b)	A . Exonerated
B . POM Emil Israil	Abuse: PO Emil Israil searched § 87(2)(b)	B . Exonerated
C . SGT Alfredo Ruiz	Abuse: Sgt. Alfredo Ruiz refused to provide his name and shield number to § 87(2)(b)	C . Unsubstantiated

Case Summary

On February 25, 2016, at 6 p.m., while at the Prospect Avenue station in Brooklyn, § 87(2)(b) jumped the turnstile where PO Emil Israil and Sgt. Alfredo Ruiz from Transit District 32 were on patrol. After jumping the turnstile, § 87(2)(b) was stopped by PO Israil asked to provide his identification at least three times, but he refused to do so. PO Israil frisked around § 87(2)(b)'s groin and waistband (**Allegation A**). PO Israil then reached into § 87(2)(b)'s pocket where his wallet was located and removed § 87(2)(b)'s identification (**Allegation B**). During the interaction, § 87(2)(b) asked Sgt. Ruiz for his name and shield number and Sgt. Ruiz told him that he would provide the information to him after the incident but never provided the requested information (**Allegation C**). § 87(2)(b) was ultimately released with a summons for § 87(2)(b)

§ 87(2)(g), § 87(2)(f)

Mediation, Civil, and Criminal Histories

§ 87(2)(b) declined mediation. As of April 14, 2016, a Notice of Claim for § 87(2)(b) is still pending (Board Review 12). § 87(2)(b) [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian and Officer Histories

- This is the first complaint filed by § 87(2)(b) (Board Review 14).
- PO Emil Israil has been a member of service for 11 years and has been the subject of one allegation which was exonerated.
- Sgt. Alfredo Ruiz has been a member of service for 22 years and has been the subject of ten allegations stemming from nine cases, none of which have been substantiated, § 87(2)(g)

Findings and Recommendations

Allegation A- Abuse of Authority- PO Emil Israil frisked § 87(2)(b)

Allegation B- Abuse of Authority- PO Emil Israil searched § 87(2)(b)

Allegation C- Abuse of Authority- Sgt. Alfredo Ruiz refused to provide his name and shield number to § 87(2)(b)

It is undisputed that after § 87(2)(b) jumped the turnstile he was stopped by PO Israil, refused to provide his identification and refused to sit down despite numerous requests from PO Israil to do so. Then, Sgt. Ruiz told PO Israil to place § 87(2)(b) into handcuffs. After retrieving § 87(2)(b)'s identification, PO Israil checked § 87(2)(b)'s name for any open warrants then issued him a summons for entering the subway system without paying.

§ 87(2)(b) stated that sometime between the first and third time PO Israil requested his identification, his groin area was frisked, then his coat was lifted up and § 87(2)(b) was frisked around his waist area. Sgt. Ruiz then asked § 87(2)(b) if he was carrying anything or if he had

any weapons and § 87(2)(b) said that he was not. § 87(2)(b) was asked again where his identification was located and he told the officer that it was in his back pocket. PO Israil then reached only in the pocket where his wallet was located and removed his wallet which contained his identification. § 87(2)(b) was then placed into handcuffs. However, in his initial phone call to the CCRB and in a follow-up phone call, § 87(2)(b) did not allege that he was frisked, and acknowledged that the officers only entered his pocket after he was in handcuffs (Board Review 1 and 15).

PO Israil stated that § 87(2)(b) was speaking loudly, flailing both arms, moving his body around and speaking with his hands and did not stop despite PO Israil asking him to do so. Shortly after § 87(2)(b) was stopped, Sgt. Ruiz approached them and § 87(2)(b) was placed into handcuffs. § 87(2)(b) refused to put his hands behind his back, refused to provide his identification, and refused to sit on the bench, despite being given numerous orders to do so. After these refusals, PO Israil placed § 87(2)(b) into handcuffs so his and § 87(2)(b)'s safety, and so that he could obtain his identification and verify his identity. PO Israil also noted that trains were coming in and out of the station, due to rush hour traffic, and he was concerned that § 87(2)(b) could easily escape or jump onto the tracks. After being handcuffed, § 87(2)(b) said where his identification was located, and only at this point, PO Israil reached into § 87(2)(b)'s pocket and removed his wallet. While § 87(2)(b) was handcuffed, PO Israil only patted down § 87(2)(b)'s groin area and around his waistband. PO Israil did this because § 87(2)(b) was speaking loudly and in an aggressive manner and because once § 87(2)(b) was placed into handcuffs, it was police procedure to pat him down for safety reasons. PO Israil denied he heard any conversation between § 87(2)(b) and Sgt. Ruiz, including § 87(2)(b) request Sgt. Ruiz's name and shield number (Board Review 2, 4, 7).

Sgt. Ruiz's statement was § 87(2)(g) that § 87(2)(b) spoke loudly and moved his hands and body back and forth. When Sgt. Ruiz approached PO Israil and § 87(2)(b) he heard PO Israil request more than three times that § 87(2)(b) provide identification and sit down. Sgt. Ruiz saw that § 87(2)(b) sat down and then immediately stood back up but did not provide his identification. While this was happening, a crowd of 20 to 40 people began to form around where § 87(2)(b) was stopped. Because it was rush hour, the station was crowded and trains were coming and going. Sgt. Ruiz considered § 87(2)(b) to be under arrest for theft of service at this point, as he was seen jumping the turnstile and was refusing to provide his identification, so a summons could not have been issued. Sgt. Ruiz instructed PO Israil to place § 87(2)(b) into handcuffs. Sgt. Ruiz denied that any physical contact was made with § 87(2)(b) before he was placed into handcuffs. However, once § 87(2)(b) was in handcuffs, PO Israil frisked § 87(2)(b) around his waistband. At that point, Sgt. Ruiz and PO Israil asked § 87(2)(b) one or two more times for his identification. Finally, § 87(2)(b) told Sgt. Ruiz where his identification was and PO Israil reached only inside the pocket where the identification was located and removed § 87(2)(b)'s identification. Sgt. Ruiz did not recall whether § 87(2)(b)

requested his name and shield but stated that he would have provided it to § 87(2)(b) had he asked (Board Review 3 and 6).

“A person is guilty of theft of services when a person intends to obtain public transportation service without payment of the lawful charge,” NYS Penal Law, Section 165.15 (Board Review 9). “An officer must establish an individual’s identity and eligibility for the issuance of a desk appearance ticket; failure to do so will result in the person being arrested until identification can be verified,” Patrol Guide Procedure, Section 208-28 (Board Review 8).

§ 87(2)(g)
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

§ 87(2)(g)
[REDACTED]
[REDACTED] Therefore, it is recommended that **Allegation A** and **Allegation B** be closed as **Exonerated**.

§ 87(2)(g)
[REDACTED]
[REDACTED] Therefore, it is recommended that **Allegation C** be closed as **Unsubstantiated**.

Squad: 7

Investigator:	_____	<u>Daniel Cooper</u>	_____
	Signature	Print	Date
Squad Leader:	_____	<u>Diana Murray</u>	_____
	Title/Signature	Print	Date
Reviewer:	_____	_____	_____

Title/Signature

Print

Date